

lenient treatment. Except when a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation."); see also *Leslie v. Board of Medical Quality Assurance* (1991) 234 Cal.App.3d 117, 121 (self-represented parties are held to "the same 'restrictive procedural rules as an attorney'"). Self-represented litigants are not entitled to special treatment and are required to follow the procedural rules that govern civil litigation. *McComber v. Wells* (1999) 72 Cal.App.4th 512, 522-523.

Nevertheless, "[t]rial judges must acknowledge that in *propria persona* litigants often do not have an attorney's level of knowledge about the legal system and are more prone to misunderstanding the court's requirements.' [Citation.] When one party has counsel and the other does not, the trial court 'should monitor to ensure the in *propria persona* litigant is not inadvertently misled, either by the represented party or by the court. ... [S]pecial care should be used to make sure that verbal instructions given in court and written notices are clear and understandable by a layperson. This is the essence of equal and fair treatment, and it is not only important to serve the ends of justice, but to maintain public confidence in the judicial system.'" *Petrosyan v. Prince Corp.* (2013) 223 Cal.App.4th 587, 594.

Applied here, there is no evidence that Plaintiffs were misled by the Court or Defendants. Indeed, the Court's prior rulings and orders to comply with her discovery obligations in previous motions set forth compliance dates.

The record of proceedings reflect that Plaintiff did not serve either motion on Defendant through his counsel of record. As such, the Court is without jurisdiction to hear either motion.

Ruling

Both motions are **DISMISSED WITHOUT PREJUDICE** for failure to effectuate service as required by law.

24. 9:01 AM CASE NUMBER: C24-01877

CASE NAME: ZACHARY MINOR VS. CRAIG HOWARD

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO PLAINTIFFS' SPECIAL INTERROGATORIES, SET TWO**

FILED BY: MINOR, ZACHARY

TENTATIVE RULING:

See Line 23.

Law & Motion

Add On

25. 9:00 AM

CASE NUMBER: C24-01760

CASE NAME: ACD-TI OAKLEY LLC VS. SUMMER LAKE OWNERS ASSOCIATION

HEARING ON SUMMARY MOTION FILED BY DEFENDANT SHEA HOMES LIMITED PARTNERSHIP

FILED BY:

TENTATIVE RULING:

Before the Court is Defendant Shea Homes Limited Partnership (“Defendant” or “Shea Homes”) motion for summary judgment or in the alternative summary adjudication. The Motion is directed toward Plaintiff ACD-TI Oakley, LLC (“Plaintiff” or “ACD”)’s Complaint for Nuisance, Trespass, and Contribution.

As a threshold issue, the Court notes that there are procedural defects in both the Notice of Motion and Separate Statement. A separate statement seeking summary adjudication must state verbatim the noticed issues from the notice of motion at the beginning of each issue for summary adjudication. (See Calif. Rules Court, rule 3.1350, subd. (b); *Truong v. Glasser* (2010) 181 Cal.App.4th 102, 118.) Here, Defendant’s notice is not organized by cause of action or issue; instead, it has two enumerated grounds (the first dealing with both Plaintiff’s causes of action for nuisance and trespass and the second dealing with Plaintiff’s cause of action for contribution) with multiple sub-grounds within. Defendant’s Separate Statement is not organized by either cause of action or issue.

The court’s power to deny summary judgment on the basis of failure to comply with California Rules of Court, rule 3.1350 is discretionary, not mandatory. (See *Cadlo v. Owens-Illinois, Inc.* (2004) 125 Cal.App.4th 513, 523; cf. *San Diego Watercrafts, Inc. v. Wells Fargo Bank* (2002) 102 Cal.App.4th 308, 315–316.) In lieu of denying the motion based upon a defective notice and separate statement, the Court elects to treat the motion as one for summary judgment only.

For the following reasons, the motion is **granted**.

Legal Standard on Summary Judgment

A motion for summary judgment is properly granted only when “all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Code Civ. Proc. § 437c, subd. (c).) A defendant may bring a motion on the ground the plaintiff cannot prove one of the required elements of the case or there is a complete defense to the action. (Code Civ. Proc. § 437c, subds. (o)(1), (2) & (p)(2); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 849.)

To carry its initial burden when the motion is directed to the plaintiff’s case rather than an affirmative defense, the defendant must present evidence that either negates an element of the plaintiff’s cause of action or shows that the plaintiff does not possess, and cannot reasonably obtain, evidence necessary to establish at least one element of the cause of action. (*Aguilar*, supra, 25 Cal.4th at pp. 853-854.) Only after the defendant carries that initial burden does the burden shift to the plaintiff “to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc. § 437c, subd. (p)(2).)

Courts “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” (*Dore v. Arnold Worldwide, Inc.* (2006)

39 Cal.4th 384, 389.)

Brief Factual Background

Plaintiff purchased the undeveloped Subject Property from Bethel Island LLC in December 2018 for the purpose of developing a residential real estate project. (Complaint at ¶ 6.) Defendant Shea Homes Limited Partnership developed the Summer Lake South Subdivision adjacent to the Subject Property and is the predecessor of Defendant Summer Lake Owners Association. (Complaint at ¶¶ 3, 4.) The Complaint alleges that in the Summer Lake South subdivision there is a lake water feature that collects flood and stormwater runoff from that subdivision and discharges those waters onto the Subject Property. (*Id.* at ¶ 12.) Specifically at issue in this case is an “Outfall Structure” and associated rip-rap which Plaintiff alleges “collects stormwater from the Defendant HOA’s Lake feature and directs that stormwater via the lake water discharge pipes to the Ditch that exists solely upon the Subject Property which is owned by Plaintiff.” (*Id.* at ¶ 14.)

Plaintiff also alleges in its Complaint that “[i]n order to complete the residential project on the Subject Property, the Plaintiff is required to design a drainage system that complies with the overall drainage plan for the City of Oakley. The drainage plan requires either a new in-tract pump station along with an upgrade to the existing Pump Station #4, or a more substantial or complete replacement of the existing Pump Station #4.” By its Complaint, Plaintiff seeks removal of the Outfall Structure and associated rip-rap or alternatively a determination that Defendants “are equitably required to contribute to the \$5.5 million dollar cost to upgrade Pump Station #4[.]” (Prayer at ¶¶ 1-2.)

Analysis

Statute of Limitations

First, Defendant argues that Plaintiff’s nuisance and trespass claims are barred by the three-year statute of limitations in Code of Civil Procedure section 338(b) because the Outfall Structure and associated rip-rap were constructed no later than 2006.

Trespasses may be continuing or permanent. (*Starrh & Starrh Cotton Growers v. Aera Energy LLC* (2007) 153 Cal.App.4th 583, 592.) “A permanent trespass is an intrusion on property under circumstances that indicate an intention that the trespass shall be permanent.” (*Id.*) In cases with permanent trespasses, “the law considers the wrong to be completed at the time of entry and allows recovery of damages for past, present, and future harm in a single action, generally the diminution in the property’s value.” (*Id.*) The three-year statute of limitations “begins to run at the time of entry.” (*Id.*) “[A] continuing trespass is an intrusion under circumstances that indicate the trespass may be discontinued or abated. In these circumstances, damages are assessed for present and past damages only; prospective damages are not awarded because the trespass may be discontinued or abated at some time, ending the harm.” (*Id.*) “Continuing trespasses are essentially a series of successive injuries, and the statute of limitations begins anew with each injury.” (*Id.*)

Plaintiff argues in opposition that “the abatability of the Outfall Structure is a question of fact for the jury to decide and Shea Homes’ Motion should be denied on this ground alone.” (Opp. at 12:9-12 [citing *Mangini v. Aerojet-General Corp.* (1996) 12 Cal.4th 1087, 1101 (“*Mangini II*”).]) While the general principal is correct, it is limited to nuisance arising from contamination. (See, e.g. *Starrh*, *supra*, 153 Cal.App.4th at p. 597, which cites *Shamsian v. Atlantic Richfield Co.* (2003) 107 Cal.App.4th 967, 980 [whether contamination is a permanent or continuing nuisance is generally a question of fact], citing *Mangini v. Aerojet-General Corp.* (1991) 230 Cal.App.3d 1125, 1148 (“*Mangini I*”) [whether contamination by toxic waste is a permanent or continuing injury is ordinarily a question of fact

turning on the nature and extent of the contamination].) This case does not arise from allegations of contamination.

Where there is a permanent trespass to land, the statute of limitations as to the entire cause of action begins to run upon creation of the trespass. (*Bertram v. Orlando* (1951) 102 Cal.App. 2d 506, 507-8.) “[T]he encroachment of a building obviously intended to be permanent upon the soil of another is permanent trespass and ... the cause of action based thereon is barred by Code Civ. Proc., sec. 338, Subd.2 in three years.” (*Id.*, 102 Cal. App. 2d at 509.)

Notably, as the Supreme Court noted in *Spaulding v. Cameron* (1952) 38 Cal.2d 265, 267, “[t]he clearest case of a permanent nuisance or trespass is the one where the offending structure or condition is maintained as a necessary part of the operations of a public utility.”

In *Spar v. Pacific Bell* (1991) 235 Cal.App.3d 1480, the defendant utility company voluntarily removed underground telephone conduits, lines and manholes before trial. (*Id.* at p. 1482.) Notwithstanding their removal, the court concluded the structures had the characteristics of a permanent nuisance. (*Id.* at p. 1486.) The structures were intentionally placed to provide indefinite service to the public, their installation and removal required considerable effort and heavy equipment, and the public utility could have kept the structures by paying fair compensation. (*Ibid.*)

The court in *Capogeannis v. Superior Court* (1993) 12 Cal.App.4th 668 relied on the *Spaulding* case in addressing whether a nuisance was abatable: “[I]t would be a rare case in which an alleged nuisance could not be abated were countervailing considerations (such as expense, time, and legitimate competing interests) disregarded. Thus, for example, in a strictly literal sense even a nuisance represented by an encroaching building or an underlying public utility pipeline might be discontinued or abated, ‘at any time,’ by tearing down the building or digging up the pipeline. But as *Spaulding* makes clear, it was for just such situations that the concept of permanent nuisance, as an exception to the preexisting rule that all nuisances should be treated as abatable and thus continuing, was developed: Regardless of literal abatibility, where as a practical matter either abatement or successive lawsuits would be inappropriate or unfair then the nuisance may be regarded as permanent and the plaintiff relegated to a single lawsuit, subject to a single limitation period, for all past and anticipated future harms. . . . Because a literal answer to the question whether a particular nuisance can be discontinued or abated will not invariably serve the purposes of the rules as discussed in *Spaulding*, the discontinued-or-abated rubric should be regarded as no more than a convenient shorthand for the fundamental considerations *Spaulding* outlined.” (*Capogeannis, supra*, at p. 678.)

Here, Defendant has adduced evidence that the Outfall Structure is designed to be a component of the stormwater drainage infrastructure under Reclamation District 799’s jurisdiction. (See Hofer Decl. at ¶ 14 [“The outfall consists of a pipe that penetrates the interior levee, terminating in a concrete discharge box (or ‘head wall’) with surrounding riprap rock. ... The outfall was designed to be, and is, a permanent component of the stormwater drainage infrastructure.”]; Ex. 16 at AOE-0233 [“The Summer Lake South development is installing a system of underground storm drain pipelines to collect and convey the runoff from the site. Storm drainage also sheet flows to the lakes, through the lake system filters. The system of storm drain pipelines connects to a central lake. This man-made lake will collect and detain the runoff from the site. The lake system is constructed with several means of filtration, including both mechanical and biofiltration systems to clean the project runoff. The clean runoff will then be pumped from the lake to the existing facilities owned and maintained by RD 799.”], AOE-0269–0271 [describing in-tract storm drain improvements and “Drainage Master Plan.”]; Ex. 3 § 11.J(ii) AOE-0124–0125 [Agreement Relative to Cypress Lakes Subdivision Between Shea Homes and

Reclamation District 799] [stating that the Reclamation District is responsible for maintenance of “the District’s ditch along the south property line” and “operation and maintenance of Pump Station #4.”]; Ex. 18 ¶ 15 at AOE-0404 [Amendment to Agreement Relative to Cypress Lakes Subdivision Between Shea Homes and Reclamation District 799] [stating that “The lake outfall structure design was approved by the District with the provision that any subsequent erosion must be repaired and the structure modified to prevent future erosion. Developer is to provide a warranty to cover the outfall structure beginning on the Effective Date of this Amendment and running for one year.”].)

Plaintiff attempts to dispute this fact with terms of a Proposed Easement that was never executed or recorded between Shea Homes and Reclamation District 799. This is insufficient to create a genuine dispute of material fact as to whether the outfall structure is a component of the stormwater drainage infrastructure under RD 799’s jurisdiction (and therefore a permanent nuisance under *Spaulding*.)

Whether the statute of limitations runs from the date the outfall was constructed (2006) (UMF 19) or the date Plaintiff purchased the Biggs Parcel (2018) (UMF 24), more than three years have elapsed before Plaintiff filed their Complaint (2024).

Because the Court concludes that Plaintiff’s claims against Defendant for trespass and nuisance are barred by the statute of limitations it need not reach Defendant’s additional arguments.

Contribution

Defendant moves for summary judgment on Plaintiff’s claim for contribution on several grounds. First, Defendant argues that there is no actual or alleged joint liability between ACD and Shea Homes that could support a claim for contribution.

Contribution is a creature of statute, specifically Code of Civil Procedure section 875, which provides:

- (a) Where a money judgment has been rendered jointly against two or more defendants in a tort action there shall be a right of contribution among them as hereinafter provided.
- (b) Such right of contribution shall be administered in accordance with the principles of equity.
- (c) Such right of contribution may be enforced only after one tortfeasor has, by payment, discharged the joint judgment or has paid more than his pro rata share thereof. It shall be limited to the excess so paid over the pro rata share of the person so paying and in no event shall any tortfeasor be compelled to make contribution beyond his own pro rata share of the entire judgment.
- (d) There shall be no right of contribution in favor of any tortfeasor who has intentionally injured the injured person.
- (e) A liability insurer who by payment has discharged the liability of a tortfeasor judgment debtor shall be subrogated to his right of contribution.
- (f) This title shall not impair any right of indemnity under existing law, and where one tortfeasor judgment debtor is entitled to indemnity from another there shall be no right of contribution between them.
- (g) This title shall not impair the right of a plaintiff to satisfy a judgment in full as

against any tortfeasor judgment debtor.

(Code Civ. Proc. § 875.)

Contribution requires a showing that one of several joint tortfeasor judgment debtors has paid more than a pro rata share of a judgment. Here, there is none. Plaintiff does not appear to dispute this in opposition; instead, Plaintiff argues both that it “seeks financial contribution for the upgrade to Pump Station #4 in the alternative to injunctive relief” (Opp. at 17:17-18 [citing Complaint at ¶ 2]) and that the 2005 Reimbursement Agreement entitles it to contribution. Both arguments are grounded in the 2005 Reimbursement Agreement and sound in contract. (Opp. at 23:24-26 [“The 2005 Reimbursement Agreement expressly contemplated reimbursement from future developers and calculates the proportional share Pump Station #4 upgrade costs if the Subject Property *is not* developed, and if the Subject Property *is* developed.”] [emphasis original].)

However, the Reimbursement Agreement expired by its own terms in August 2020. (Ex. 13 § 4 at AOE-0173 [“The term of this Agreement for Reimbursement is fifteen years from the date first above written, and upon the expiration of such term, this Agreement for Reimbursement shall be terminated and no further reimbursement shall be made.”].) Additionally, there is no indication on its face that Plaintiff was intended as a third-party beneficiary under the contract. The claim for contribution fails.

For the foregoing reasons, Defendant is entitled to Summary Judgment.

Evidentiary Objections

The Court rules only on those objections material to the Court’s ruling on the motion for summary judgment. (Code Civ. Proc. § 437c(q).) Here, there were none.